



File No.: EXP202100603

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by GSMC EVENT PROJECT MANAGEMENT, S.L. NIF B64828973 (hereinafter, the appellant) on behalf of GSMA LIMITED, NIF N4004237F, against the resolution issued by the Director of the Spanish Agency for Data Protection dated 24/02/2023, and based on the following

FACTS

FIRST: On 24/02/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202100603, by virtue of which a fine of 200,000 euros was imposed on GSMA LIMITED, with NIF N4004237F:

“For a violation of Article 35 of the GDPR, in accordance with Article 83.4.a) of the GDPR, and for the purposes of prescription, considered as serious under Article 73.t) of the LOPDGDD.”

This resolution, which was notified to the appellant on 24/03/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and supplementarily under Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00553/2021, the following was recorded:

1) “In the terms and conditions of assistance for the MOBILE WORLD CONGRESS (MWC) of Barcelona 2021, it is stated that GSMA Ltd. ('GSMA') is the organizing entity of the MOBILE WORLD CONGRESS (MWC) of Barcelona 2021, to be held from 28/06 to 1/07/2021, and carries out, among other things, data processing of the attendees. The website www.mwcbarcelona.com/legal contains information about the Barcelona Congress 2022, indicating that “GSMA LTD with its main place of business located in Atlanta, USA, a wholly-owned subsidiary of the GSM association, and regarding 4yfn 2022, GSMA 4fyn EVENT MANAGEMENT S.L., a subsidiary of GSMA LTD., welcomes you to MWC BARCELONA 2022.”, and that “GSMA LTD and its affiliates provide you with the event...”

According to information from the internet, GSMA (Global System for Mobile Communications) is an industry organization that groups mobile operators from around the world, with more than 750 mobile phone operators and over 400 companies associated as members.

According to the claim: GSMA EVENT PROJECT MANAGEMENT, S.L. (EPM) is a Spanish subsidiary of GSMA. EPM was specifically created to provide services related to the management of the MWC in Barcelona. The activities of personal data processing by GSMA are inextricably linked to the activities of EPM.

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Therefore, GSMA processes personal data in the context of the activities of an establishment in the EU and is subject to the GDPR pursuant to Article 3, paragraph 1 of the GDPR, so that no EU representative is required in accordance with Article 27 of the GDPR.”

The aforementioned entity is not registered in the Commercial Registry, but GSMC EVENT PROJECT MANAGEMENT, S.L., CIF B64828973 is registered, with the corporate purpose: “the provision of project management services, and support services related to conferences, congresses, shows, and meetings organized by any of the companies belonging to the group of companies.”

On the other hand, the entity GSMA 4YFN EVENT MANAGEMENT S.L, CIF B67299297, located at Av. de la Reina Maria Cristina S/N Hall 1, Barcelona, has the corporate purpose “provision of conference and event services, organization of business, social, cultural, recreational, or technological events, including the setup of trade fairs, etc.” In the consultation of the AXESOR application, GSMA

LIMITED appears as the sole partner. GSMA LIMITED is listed in the AXESOR application as a non-resident entity, with NIF N4004237F.

2) In the terms and conditions of attendance, the registration process is provided, which would enable the physical access of attendees to the event for that 2021, requiring the creation of an account on their website and registering for attendance, so that upon arrival at the physical venue, one must already be registered. There would be no support areas for registration at the venue, nor would printed credentials be provided. The system aimed to have a verification of the identity collected prior to each person's arrival at the venue. For the year 2021, MWC required the registration of ID card/passport, identity card, to be uploaded to their website as mandatory for attendance in person at their venue. It was only not required to upload identity documents for those opting for the "virtual" mode. These requirements are outlined in the "terms and conditions for attendance" MWC 2021, Barcelona, which attendees must accept.

In the terms and conditions of attendance, it is provided: "Identification: You agree to carry a government-issued photo identification in the form of a passport or EU national identity card with you at all times during the Event. You will be asked to present such identification. You are solely responsible for the accuracy of all personal data provided when registering for the Event..."

Additionally, user registration collects data such as "name, position, company name, work address, work email, job functions, phone number, area of interest, and photograph. If you are a speaker, as additional information, your professional profile."

3) The respondent indicated to the claimant that the passport and identification data are required and demanded by the Mossos d'Esquadra, and that the legitimizing basis for the processing of the upload of passports and identity cards is Article 6.1 c) of the GDPR as they were required to provide certain information to the Mossos: name, surname, nationality, date of birth, identity document provided, date of issue, and document number, being this manner of...

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to provide it innovatively, as it is electronic and "has changed for 2021, due to the fact that businesses need a contactless environment." The defendant does not substantiate this requirement nor that it must be through a website of its own private ownership, where they are collected and stored. The defendant pointed out that, in previous editions of the Congress, attendees carried their identification cards in a credential.

4) In the general terms and conditions for attendees, it is indicated in privacy and Data Protection that data is collected "about you in relation to the provision of services and for account administration" and that more details about the policy regarding the processing of personal data are available in the Privacy Policy. The Privacy Policy states that information is obtained about the data collected from various groups, including attendees, through the attendee registration system, the event app, digital and/or printed credential cards, or the facial recognition scanning system (at access points, for sessions, or to participate in meetings in closed spaces). It states: "information that you provide voluntarily: 'when... you create an account with us, you register for the event, ... you request a service...'" The information collected includes, but is not limited to: your name, position, company name, work address, work email, job functions, phone number, area of interest, and photograph. If you are a speaker, additional information includes your professional profile.

5) The defendant explains that, starting from the collection of the aforementioned identity documents, there is the possibility, when registering on the website for in-person access, of two methods, and one more residual:

a) Automatic verification recognition, also called automatic identity validation: Alongside the identity documents already uploaded, the defendant's website program requests explicit consent to use BREEZ (acronym for easy entry with biometric recognition) which utilizes biometric facial recognition. In this modality, one can register both during the registration process and after having registered for the event. The BREEZ system assumes that the SCANVIS software - responsible for the defendant's

processing - takes a photo of the person and automatically matches the image "that we provide with the photograph in your passport/national identity card," "to which it will assign matching scores," "the technology analyzes facial features, taking measurements of the data points that make up the face, such as the distance between the eyes, or from the forehead to the chin, a series of data points are processed to create a map of your face in real-time, this becomes a data pattern using an algorithm to create what the defendant calls a 'biometric token' (biometric file, identifier). That token is what enables your image captured by the FR reader at access points to match and gain access to the event in differentiated queues, for sessions or to participate in meetings in closed spaces or even restricted areas.

At access points without contact using BREEZ, it is indicated that "it will verify your image captured by the cameras against your biometric token for identification validation purposes."

In the consent information for BREEZ, it is stated that "You consent to GSMA using your biometric data obtained from the photographs provided by

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you for identification validation purposes in the context of online registration

and for MWC Barcelona for access to the venue," preceded by a checkbox that indicates "Yes, I consent to the use of my biometric data for automatic identity validation."

It grounds the purpose in a dual sense, verifying identity when attending the event, and security in access to the venue. The legal basis for this processing, as indicated, would be explicit consent, which can be withdrawn, resulting in manual validation.

Information about the BREEZZ system is expanded in the BREEZ FAQs -FR

The consent granted for automatic identity validation can be withdrawn at any time.

a) Recognition of manual verification, or manual validation of identity:

Along with the identity documents already uploaded, the program on the website of the respondent takes a photo of the attending person. This implies that access will occur with control through human presence, which performs the verification when the attendee approaches and scans their digital credential in the form of a readable QR code, showing the taken photo that the human presence sees at the same time as the person.

b)

Exceptionally, paper identification validation, in-person on-site.

2)

The so-called "biometric token" created for the image comparison process will be deleted four (4) weeks after the conclusion of the event. It notes in the section "how is my biometric data used and stored?" that each biometric token is encrypted and stored in a database separate from the raw data used in its creation.

However, in the BREEZ FAQs, it is indicated that despite not having contact, all attendees must have their digital credential available to enter the external perimeter of the venue and that the digital credential will also be the only way to access conferences and their partner sessions.

3)

According to the respondent, the entity SCANVIS, with which it has a processing agreement for the facial recognition system for access to the venue, is located in a country outside the EU, and GSMA has signed standard contractual clauses with SCANVIS. It adds that the MWC FR data is hosted by Amazon Web Services ("AWS") in Germany.

4)

The respondent stated that at MWC 2019, paper copies of identification documents were manually verified upon accessing the MWC venue, an option that was removed in 2021—except for exceptions—for health and safety reasons, in order to minimize the risk of spreading COVID-19, reducing queues and crowds at access points. This is in line with the "action plan for congresses of the

Generalitat de Catalunya” to which GSMA is subject and which expressly requires the replacement of manual processes with digital processes.

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5) According to the respondent at MWC 2021, approximately 20,000 people attended.

10) Before the MWC of 2021, the respondent had a document of IMPACT ASSESSMENT that is submitted in allegations, titled: “MWC20 Facial recognition process,” created on 12/17/2019. It has nine sections with yes/no responses, related to data protection principles, showing zero in all types of risks, residual risk, none. In several questions, it reproduces the article of the GDPR, and the response: Yes (examples 4.5, 4.4, 4.6 among others). In the first section: “general,” it indicates that “it is a new version of the facial recognition process updated for 2020” (it mentions events dated in the Congress of 2020, none from 2021), and that the “term BREEZ is the customer-oriented term for our facial recognition process.” It is a revision of the 2019 project, which includes its changes since then, referring to the operation of BREEZ. In the section on How would you assess the importance of the necessity of processing operations? (5.2) it does not indicate the processing activity of facial recognition, stating: “In order to meet security measures at the event, we have been instructed by the Spanish Police Form to implement strict processes to ensure that all attendees are screened through a passport/identity document verification from the EU before they can enter the venue and collect their credentials. The legacy processes are based on manual verifications that can be slow and provide a negative experience at the event. Through the use of the technology described in this DPIA, we can automate them to allow for a much more efficient process, as well as a more accurate and secure event.”

In section 5.3 regarding the proportionality of the processing operations, it only states that yes, “to meet the requirements, it is necessary to create biometric tokens based on photographs.” The document lacks an assessment of the necessity and proportionality of the processing operations concerning its purpose; the use of facial recognition for access to events, its assessment of the risks to the rights and freedoms of the data subjects referred to in section 1, of article 35 of the GDPR, and the measures planned to address the risks, including guarantees, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with the GDPR, taking into account the rights and legitimate interests of the data subjects and other affected persons. Likewise, it relates the data from passports and identity cards that it states are required by the Mossos d'Esquadra, which allegedly have a purpose, to connect it with the photo taken with the software, which initiates the facial recognition process, pairing their identity to facilitate access.”

THIRD: The appellant submitted on 03/24/2023, to this Spanish Agency for Data Protection, a request for reconsideration, fundamentally based on:

The non-compliance with article 35 of the GDPR that sanctions the resolution refers to the “lack of diligence” in the preparation of a data protection impact assessment (DPIA) for the processing of biometric data from facial recognition (“RF”)

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used for access to the MOBILE WORLD CONGRESS (“MWC”) in its 2021 edition. It is specifically stated that GSMA: “has provided an impact assessment that was merely nominal, as it did not examine its substantive aspects, nor assessed the risks or the proportionality and necessity of the implementation of the system, its impact on the rights and freedoms of the data subjects and its guarantees.”

In the grading of the infringement, it was estimated, applying Article 83.2.a) of the GDPR, that the use of the RF affected all attendees, 20,000 people, without distinguishing those among them who used

the system, which amounted to 7,585 people and was already stated during the processing of the file. It requests that, based on the fact that the actual data to be considered for the aggravation is almost a third less than the stated number of people, this should be taken into account to proportionally adjust the sanction downwards.

It provides in an annex a detailed specification of the number of people who used the RF system with details of accesses made.

In the certificate, it specifically indicates that, out of the 17,462 registered attendees, 7,585 people used the RF to access the venue.

Along with the certificate, it provides about 240 pages in Excel format, of data records, which under the indicator "Scan Date" range from June 28 to July 1, 2021 (four days), with a total of 7,585 records associated, each containing its series of identifiers made up of letters and numbers, which would correspond, according to the allegations, to the registered individuals, deducing that all are distinct, corresponding to the attendees, showing: "completed records," as well as the access time "Scan Time" and the door through which they accessed.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Data Protection Agency is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Analyzing the allegation of the affected individuals regarding the scope of the processing in relation to the circumstance contained in the resolution under Article 83.2 a) of the GDPR, it is observed that, in the table provided, it does not indicate how many times those 7,585 individuals accessed per day, or during the four days that the Congress lasted, once the registration was completed.

In the contested resolution, it is not considered as a proven fact that there were more than 20,000 attendees, now certified at 17,000, nor that they were directly affected by the processing, that is, that they used the RF system. On the contrary, it was estimated that, given that it was a mass attendance event, the actual number of registered RF users of 7,585 does not contradict that factor. That is, the type of mass attendance event was considered as an aggravating factor, not the exact number of direct affected individuals by this type of processing.

Furthermore, within the high percentage represented by the 7,585 attendees who opted for this RF system, out of the total of 17,462, it would exceed 40%, a high degree to be taken into consideration. Moreover, there is no estimation of the intensity of RF use by days, so it is agreed that even with this data, it affects a large mass of attendees who must use the system intensively each time they access the venue. This aggravating element, along with the undisputed "intentionality or negligence in the infringement" and especially the link to the professional activity of the habitual processing of personal data, could not diminish the aggravated unlawfulness that the nature of the processing and the affected individuals on whom the alleged infringement falls, absence of a DPIA.

Thus, it is estimated that the circumstances considered in the resolution are appropriate in their grading.

Regarding the allegation of the appellant that they were sanctioned for "lack of diligence" in the DPIA, it was not indicated as such in the resolution, but rather as a reference to the conduct, to aggravate it, not to the qualification of the DPIA. What the resolution concludes is that a DPIA that does not contemplate its essential elements is neither effective nor fulfills any objective.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,
the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by GSMC EVENT PROJECT MANAGEMENT, S.L. on behalf of GSMA LIMITED NIF N4004237F against the resolution of this Spanish Data Protection Agency issued on March 24, 2023, in file EXP202100603.

SECOND: TO NOTIFY this resolution to GSMC EVENT PROJECT MANAGEMENT, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment at

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the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A. or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it becomes executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí
Director of the Spanish Agency for Data Protection
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